

No. 25-13631

IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

CITADEL SECURITIES LLC,
Petitioner,

v.

U.S. SECURITIES AND EXCHANGE COMMISSION,
Respondent.

On Petition for Review of an Order
of the Securities and Exchange Commission

**RESPONSE TO TIME-SENSITIVE MOTION TO EXPEDITE AND JOINT
MOTION TO SET AGREED-UPON BRIEFING SCHEDULE**

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CERTIFICATE OF INTERESTED PERSONS

In compliance with Eleventh Circuit Rules 26.1-1 to 26.1-3, the following is a list of all persons and entities known to have an interest in the outcome of this appeal:

1. Citadel Securities GP LLC, indirect, ultimate controlling entity of Citadel Securities LLC.
2. Citadel Securities LLC, Petitioner.
3. Doumani, Tala A., counsel for Proposed Intervenor Investors Exchange LLC.
4. Hardin, Tracey A., Securities and Exchange Commission Solicitor.
5. IEX Group, Inc., parent company of Proposed Intervenor Investors

Exchange LLC.

6. Investors Exchange LLC, Proposed Intervenor.
7. Parise, Emily True, counsel for Respondent Securities and Exchange Commission.
8. Richman, Brian A., counsel for Petitioner Citadel Securities LLC.
9. Savitt, William, counsel for Proposed Intervenor Investors Exchange LLC.
10. Scalia, Eugene, counsel for Petitioner Citadel Securities LLC.
11. Securities and Exchange Commission, Respondent.
12. Shin, Won S., counsel for Proposed Intervenor Investors Exchange LLC.
13. Tienken, John W., counsel for Petitioner Citadel Securities LLC.
14. Wachtell, Lipton, Rosen & Katz, counsel for Proposed Intervenor Investors Exchange LLC.
13. Walker, Helgi C., counsel for Petitioner Citadel Securities LLC.
14. Wolf, Brandon, counsel for Petitioner Citadel Securities LLC.

The parties will file an amended certificate of interested persons should they become aware of a change in interests that would affect the disclosures as required by Federal Rule of Appellate Procedure 26.1 and 11th Circuit Rule 26.1-4.

CORPORATE DISCLOSURE STATEMENT

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-1, Proposed Intervenor Investors Exchange LLC states that it is wholly owned by IEX Group, Inc., and no publicly held corporation owns 10% or more of its stock.

Petitioner Citadel Securities LLC certifies that it is an indirect subsidiary of Citadel Securities GP LLC and that no publicly held corporation has a 10% or greater ownership interest in Citadel Securities GP LLC.

**RESPONSE TO TIME-SENSITIVE MOTION TO EXPEDITE AND JOINT
MOTION TO SET AGREED-UPON BRIEFING SCHEDULE**

1. On October 17, 2025, petitioner Citadel Securities LLC (“Citadel”) filed a Petition for Review in this Court, seeking review of a September 18, 2025 order of the Securities and Exchange Commission approving a proposed rule change of proposed-intervenor Investors Exchange LLC (“IEX”) to govern the trading of options on IEX Options LLC.

2. On October 31, 2025, Citadel filed a Time-Sensitive Motion to Expedite the case schedule (“Motion to Expedite”), or in the alternative for a stay of the underlying Commission order.

3. Citadel’s Motion to Expedite sought a briefing schedule, premised on IEX’s public announcement of a first quarter 2026 launch of IEX Options LLC, that would allow for a requested decision date from this Court before the planned launch.

4. Subsequent to the filing of Citadel’s Motion to Expedite, the parties have conferred in good-faith negotiations to reach an agreed-upon briefing schedule and requested decision date.

5. As part of those negotiations, IEX has represented to the parties, and hereby represents to this Court, that it plans to launch IEX Options LLC in the third quarter of 2026.

6. Based on that new anticipated launch date and in light of the continued

lapse in Commission appropriations, the parties jointly and respectfully request, by this Joint Motion, that this Court enter the below agreed-upon briefing schedule, which would allow for a requested decision date of June 15, 2026, before the planned launch of IEX Options LLC.

7. This Joint Motion and proposed agreed-upon briefing schedule supersedes Citadel's Motion to Expedite, including the schedule proposed therein and alternative stay request, which Citadel hereby withdraws.

Wherefore, the parties hereby jointly and respectfully request the Court enter the following agreed-upon case schedule:

Filing	Date
Agency record / certified list	December 12, 2025
Petitioner Citadel's opening brief	December 19, 2025
Amicus briefs in support of Citadel	January 8, 2026
Respondent SEC's brief	January 30, 2026
Intervenor IEX's brief	February 6, 2026
Amicus briefs in support of Respondent	
Petitioner Citadel's reply brief	February 20, 2026
Oral argument	March-April 2026
Requested decision date	June 15, 2026

Respectfully submitted,

TRACEY A. HARDIN
Solicitor

/s/ Emily True Parise
EMILY TRUE PARISE
Senior Appellate Counsel

Securities and Exchange Commission
100 F Street, NE
Washington, DC 20549-9040
(202) 551-5169 (Parise)
parisee@sec.gov

*Counsel for Respondent Securities and
Exchange Commission*

/s/ By Consent
EUGENE SCALIA
HELGI C. WALKER
JOHN W. TIENKEN
BRANDON WOLF
GIBSON, DUNN & CRUTCHER LLP
1050 Connecticut Avenue, N.W.
Washington, DC 20036-5306
(202) 955-8500
escalia@gibsondunn.com

BRIAN A. RICHMAN
GIBSON, DUNN & CRUTCHER LLP
2001 Ross Avenue, Suite 2100
Dallas, TX 75201
(214) 698-3100
brichman@gibsondunn.com

*Counsel for Petitioner Citadel Securities
LLC*

/s/ By Consent

WILLIAM SAVITT

WON S. SHIN

TALA A. DOUMANI

WACHTELL, LIPTON, ROSEN & KATZ

51 West 52nd Street

New York, NY 10019

(212) 403-1000

wdsavitt@wlrk.com

Counsel for Proposed Intervenor

Investors Exchange LLC

Dated: November 10, 2025

CERTIFICATE OF COMPLIANCE

I certify that this document complies with the type-volume limitation set forth in Federal Rule of Appellate Procedure 27(d)(2) because it contains 356 words, excluding the parts of the motion exempted by Federal Rule of Appellate Procedure 32(f).

I also certify that this document complies with the typeface and type-style requirements of Federal Rule of Appellate Procedure 32(a)(5) and (6) because it uses a proportionally spaced, 14-point Times New Roman typeface.

/s/ Emily True Parise
Emily True Parise
Senior Appellate Counsel
Securities and Exchange Commission
100 F Street, N.E.
Washington, D.C. 20549-9040
(202) 551-5169
parisee@sec.gov

Dated: November 10, 2025

CERTIFICATE OF SERVICE

I certify that today, November 10, 2025, a copy of the foregoing document was filed with the Court's CM/ECF system, thereby effecting service on all parties.

/s/Emily True Parise
Emily True Parise
Counsel for Respondent